

**BEFORE A
COMMISSION ON PROFESSIONAL COMPETENCE
SAN MATEO-FOSTER CITY SCHOOL DISTRICT
STATE OF CALIFORNIA**

In the Matter of the Dismissal of:

**BRON HANTZIS, a Permanent Certificated Employee,
Respondent.**

OAH No. 2024060669

DECISION

A Commission on Professional Competence (Commission) heard this matter by videoconference on November 4, 5, 6, 7, 8, 12, and 13, 2024. The Commission's members were Laura Andrews, Davis Joint Unified School District; Carissa Carrera, Coachella Valley Unified School District; and Administrative Law Judge Karen Reichmann, State of California, Office of Administrative Hearings, who presided.

Attorneys Georgelle Cuevas and Erika Rodine represented the San Mateo-Foster City School District.

Respondent Bron Hantzis represented himself.

The Commission received oral opening statements, testimonial and documentary evidence, and oral closing arguments. The record was held open to permit the parties to file briefs regarding the standard of proof. The District's brief was timely filed and marked for identification as Exhibit 71. Respondent previously briefed

and argued the issue and did not file an additional brief. The record closed and the matter was submitted for decision on November 19, 2024.

FACTUAL FINDINGS

Procedural Background

1. Respondent Bron Hantzis holds a clear multiple subject teaching credential.

2. Respondent has been a permanent certificated employee of the San Mateo-Foster City School District (District) since 2014. He began teaching at the District as a substitute in approximately 2009.

3. On March 5, 2024, Diana Tavares, the District's Assistant Superintendent of Human Resources, sent respondent a letter notifying him of the District's intention to recommend to the Board of Trustee (Board) that he be dismissed. Respondent was provided with a proposed Statement of Charges detailing the allegations against him and was afforded the opportunity to respond to the charges in writing or in person. Respondent, through counsel, submitted a written response. On March 29, 2024, District Assistant Superintendent of Student Services Dennis Hills, in the role of *Skelly* officer, notified respondent that the Statement of Charges would be presented to the Board.

4. On March 29, 2024, Tavares signed the Statement of Charges which was served on respondent and sent to the Board.

5. At a meeting on April 25, 2024, the Board voted to immediately suspend respondent without pay and dismiss him from employment. Respondent timely requested a hearing and filed a motion for immediate reversal of suspension.

6. Respondent's motion for immediate reversal of suspension was granted by an administrative law judge on June 18, 2024, and respondent was restored to paid status.

7. On August 6, 2024, Executive Director of Human Resources John Cosmos signed a Revised Statement of Charges which corrected misnumbering of paragraphs and other typographical errors, including a single instance where the incorrect school district was named. This Revised Statement of Charges was not presented to the Board because it did not contain any substantive changes.

8. Prior to the hearing, respondent filed a motion to exclude evidence pertaining to any allegations of misconduct which took place more than four years prior to the filing of the notice of dismissal, and to strike any references to any misconduct from more than four years ago from the Statement of Charges, which was granted. The District provided an Amended Revised Statement of Charges, redacting the excluded allegations.

9. The Amended Revised Statement of Charges alleges numerous incidents involving respondent bearing on his fitness for continuing service. The District characterizes these incident as cause under the Education Code to dismiss respondent from employment for: 1) evident unfitness for service and 2) persistent violation of or refusal to obey the school laws of the state or reasonable regulations prescribed for the government of the public schools.

10. The Commission has considered all testimonial and documentary evidence, and weighed all witnesses' credibility, in making the factual findings.

11. Respondent declined to testify at hearing and, when called as a witness by the District, would not answer any of the District's questions. Respondent characterized each of the District's questions as "an attempt to violate or actual violations" of his right to due process and other rights, and stated that he was invoking the protections of the United States constitution, the California constitution, Title VII of the Civil Rights Act of 1964, Title IX of the Education Amendments of 1972, Labor Code section 6310, the Fair Employment and Housing Act, and the Reporting by School Employees of Improper Governmental Activities Act. Respondent continued to refuse to answer the District's questions even after being admonished that he did not have a right to refuse to testify in this proceeding. Respondent insisted that he was not refusing to answer questions and that he was cooperating with the proceeding.

12. Similarly, prior to hearing, respondent would not meaningfully answer questions posed to him by the District at deposition, even after an order was issued granting the District's motion to compel him to attend the deposition and ordering him to pay sanctions due to his bad faith and/or frivolous refusal to cooperate at a prior deposition session.

Allegations

2022-2023 SCHOOL YEAR

13. During all times relevant to the Amended Revised Statement of Charges, respondent taught fourth grade at the District's Brewer Island Elementary School.

14. Respondent had a practice of requiring students to write essays or write out sentences dozens or hundreds of times as a corrective measure. For example, respondent might direct students who forgot to put their names or the date on an assignment to write their name or the date or a sentence such as "I am a disappointment" multiple times, or to write an essay about why what they had done was wrong. Students were directed to perform these writing exercises during recess and lunch time, in public view. Some students were observed performing these writing exercises during breaks for multiple days or weeks in a row. Respondent's students have also been seen writing in chalk on the asphalt ground of the school yard statements such as "there are reasons why our class expectations are good." Brewer Island principal Rebecca "Becky" Stephan had expressed to respondent concerns that assigning these writing exercises was not an effective practice.

15. In February 2023, the parents of a student in respondent's class, V.P., contacted Stephan about concerns they had about their son. Stephan directed them to try to resolve any issues with respondent directly and offered to meet with them if their efforts were unsuccessful.

16. In early May 2023, respondent assigned his students to write essays on the topic, "Why I Appreciate [Respondent]." V.P. wrote that he did not like respondent because he was disrespectful, and gave an example that respondent made vegetarians touch a dead fish. V.P. also wrote that respondent's "rules are dumb," giving as examples that respondent made students "write" if their bodies were not facing someone speaking or if they made a lot of mistakes, and that he made students sit in the office if they forget to write the date three times.

17. On May 9, 2023, respondent sent an email to V.P.'s parents and to the parents of another student in his class. Respondent notified both sets of parents in this

email that both students would not be permitted to attend an upcoming overnight field trip to Coloma. This field trip is tied to the fourth grade California history curriculum. Respondent's rationale for prohibiting the students from attending the field trip was their misbehavior when they had been sent to the school office. When V.P.'s parents emailed respondent asking about V.P.'s behavior that justified this punishment, respondent wrote, "lying, dishonesty, not communicating" and laying on the ground in the office. Respondent had not reached out to Stephan to discuss the two students' behaviors prior to notifying their parents that their children would not be allowed to attend the field trip.

On May 15, 2023, respondent notified both sets of parents that their children would be allowed to attend the field trip due to the difficulty of obtaining refunds for the families.

18. Around May 16, 2023, V.P.'s parents contacted Stephan with concerns about what they viewed as respondent's excessive discipline of their son and the stress he was experiencing. They complained that V.P. had been sent to the office during recess for two weeks and had been made to write sentences during the entire lunch period. They were concerned that he had not had any time to eat during the school day. They were also concerned that respondent had made students touch a dead fish in class and ate a fish in class in front of students, and questioned what could be the educational purpose of these actions. They also noted that the discipline had increased after V.P. had submitted the essay stating that he did not like respondent. V.P.'s parents kept him out of school between May 17 and May 19 due to their concerns about how respondent was treating him.

19. Stephan arranged for a meeting with respondent and V.P.'s parents. Prior to the meeting, respondent requested that V.P. attend the meeting, and also

suggested that the parents meet to discuss their concerns in respondent's classroom in front of the entire class. Stephan notified respondent that she did not support meeting in front of the whole class, and that V.P.'s parents preferred to meet with him without V.P. present, at least initially.

20. Respondent attended the meeting with Stephan and V.P.'s parents on May 19. The parents asked respondent why he had assigned students the assignment, "Why I Appreciate [Respondent]," why he had students touch a dead fish, and why he ate a sardine in class. Respondent would not answer the parents' questions without V.P. present and left after only 10 minutes. He sent an email later apologizing for having attended the meeting in the first place without V.P.'s presence, stating that "choosing to exclude [V.P.] goes against everything I've ever been taught." Respondent wrote that he would be willing to meet V.P.'s parents for a discussion "with [V.P.] about his behavior."

21. In May 2023, respondent engaged in a classroom activity whereby he had students publicly rank other students' reliability and honesty on a scale of 1 to 4. Students were required to publicly state how they ranked other students and explain why. This exercise is not part of the District's curriculum.

22. On May 23, 2023, V.P.'s father wrote to Stephan, stating that he had heard from other parents that respondent had bad-mouthed V.P. behind his back in front of the class. He had heard that respondent was ranking students on a scale of 1 to 4 and had given V.P. the lowest rating. He wrote that he was scared for V.P.'s safety and wanted him moved out of respondent's class.

23. On May 24, 2023, Stephan notified respondent by email to stop having students rank each other in class connected to performance or behavior, and not to

talk about students who are not present. She also spoke with him verbally that day and he acknowledged having students rank each other. Respondent replied by email the following day, "I object to your request to stop doing things based on hearsay. My reasoning is that such a request is unlawful, new and unreasonable as well as unsafe and/or unhealthy. Even if not hearsay, I object for the same reasons."

24. Respondent met with Stephan on May 25. He would not answer Stephan's questions related to V.P.'s parents' concerns.

25. Stephan decided to move V.P. to another classroom, even though there were only eight days left of school. She notified respondent by email on May 25, 2023, that V.P. would be moved to Claire Cremers's class the following day, a Friday. Her email to respondent was sent at 2:48 p.m. Stephan addressed the students in both respondent's class and Cremers's class, explaining that V.P. would now be in Cremers's class and requesting that the students not make him uncomfortable by asking him why.

26. Stephan emailed respondent on May 26 and asked him to provide by May 31 a copy of his "classroom expectations and classroom discipline practices as shared/communicated with your students' parents/guardians at Back to School Night or otherwise." Respondent sent Stephan a document from a Back-to-School Night presentation from the 2021-2022 school year and stated that her request was "new and unreasonable, unlawful and safe [*sic*] or cause undue injury."

27. Stephan met with some of respondent's students on May 30. Students reported that respondent had publicly rated students on reliability and had given V.P. the lowest score. It was also reported that respondent stated to the class that V.P. is

dishonest, talked about V.P.'s move to Cremers's class, and said V.P. was escaping what he needs to do.

28. Stephan directed respondent to send V.P.'s grades to Cremers. Respondent sent an email to Cremers on June 2. Respondent wrote that V.P.'s grade in the following three areas of social responsibility was "seldom": 1) shows respect for self, others, and property; 2) takes responsibility for actions; and 3) makes sense of problems and perseveres in solving them. Cremers was surprised when she saw these grades because respondent had previously graded V.P. as "most of the time" in these areas and she was concerned about respondent's motive for the lower marks. She did not observe V.P.'s conduct to warrant the low scores respondent gave him in social responsibility.

29. On June 1, 2023, Stephan notified respondent to plan to attend a meeting with her and Christian Rubalcaba, Director of School Leadership, on June 5, at 9:30 a.m., related to the concerns raised by V.P.'s parents regarding punishment, bullying, and harassment.

30. On June 5, 2023, Stephan talked to a student from respondent's class who reported that respondent had written prompts about V.P.'s removal from his class on the chalkboard for students to write about and discuss, and that he told the students that they could sign a "form" if they wanted V.P. back in their class.

31. Also on June 5, 2023, at around 8:30 a.m., two of respondent's students came to the door of Cremers's class and asked for V.P. Cremers was in the middle of a lesson, and told them she would not send V.P. outside to meet with them. Respondent and the rest of his students joined the first two students at the door to Cremers's classroom and stated that he wanted to give V.P. his library card. Cremers told

respondent that he was not to have contact with V.P. Respondent stood in the doorway with his entire class standing around him, and addressed V.P., stating “we miss you and we want you to come back to our class” and that he was going to deliver a petition for V.P. to return to his class. Cremers’s students responded by saying “oooh,” indicating that they understood that something unusual was happening or that someone was in trouble. Cremers observed V.P. looking uncomfortable, confused, and nervous. Cremers was uncomfortable during the incident and had to “steady” herself after respondent and his class finally left, in order to stay calm and resume teaching her students.

32. Several students in respondent’s class signed a petition which stated “We object to [V.P.] being removed from our class community of room 21. Please return him to us.”

33. Respondent met with Stephan, Rubalcaba, and a union representative at 9:30 a.m. on June 5. Respondent provided Stephan with a written timeline prior to the meeting. Respondent objected to many of the questions Stephan asked. Respondent acknowledged discussing V.P.’s removal from his class with his students. He expressed disappointment that his students had not asked him why V.P. had been transferred to Cremers’s class and that only five or six students signed the petition to have V.P. returned. Stephan advised respondent that he was not following the District’s discipline policies, including by trying to prevent students from attending an educational field trip. Respondent asserted that participation in field trips is “earned” and not a right. Stephan directed respondent not to approach or talk to V.P. Stephan sent respondent an email at 3:29 p.m. that day, stating in part, “The directive stated and agreed upon at the end of the meeting is for you to have no contact of any kind or proximity to [V.P.]”

Respondent replied to this email the following morning, stating:

With regards to the meeting yesterday that I understand was unreasonable, unlawful, unsafe, unhealthy, new, intimidatory and unethical:

I officially object to that directive as unsafe, unhealthy, unreasonable, impossible, unreasonable [sic]. I also object to it as unethical and intimidatory. That being said, I'm not planning on approaching [V.P].

34. Cremers wrote an email at 3:09 p.m. on June 5 to respondent stating that she had felt very uncomfortable with respondent "towering over" her to give a message to her class, and that she wished to have no further contact with him for the rest of the school year.

35. Respondent replied to Cremers's email the following morning. He wrote:

Our class came to speak with [V.P.] and deliver his library card together and let him know that we were making a petition to bring him back to our class. I was also there to check in on [V.P.]. When two kids asked for [V.P.] to come out because they had something for them, you came outside and let me know that you had a directive from Becky that you couldn't let me talk or see [V.P.] - something like that. I was **shocked** and unaware of that. I fully recognize how being given a directive then having someone come in conflict with your directive could make you feel uncomfortable.

I believe it's important that I provide reasoning to you for why I spoke with [V.P.].

I said something like I understood, then poked my head inside and let [V.P.] know something like I didn't know he was going to be removed from our class and I wish he could stay with us. He was looking at me, I let him know things like I believe in him and made it clear that he can accomplish anything in life. Myself and our class thought [V.P.] was out sick since Coloma. I myself didn't have a clue [V.P.] *might* be moving classes until you told me the Wednesday before our field trip to the tech museum that Becky was going to transfer [V.P.] to your class on Friday. Again, I was **shocked**, because I had no clue about that. Becky first sent me an email on that Friday morning, which I didn't see because I was out on the field trip. I'm also currently objecting to [V.P.]'s transfer and need for me to write grades.

All that being said, I fully respect your request, but please recognize we may pass each other or need to send emails to our team and such.

A few minutes later, respondent sent a follow up email to Cremers stating, "Forgot to mention, but feel it's important to include that as I left, [V.P.] and I exchanged peace signs."

36. Cremers did not believe respondent when he wrote that he was “shocked.” She believed respondent was aware that he was not supposed to have contact with V.P. Even if there had not been a non-contact directive, Cremers would have found respondent’s conduct disruptive and inappropriate.

37. In the afternoon of June 6, respondent sent an email to Stephan stating:

Just thought I’d let you know that as I turned a corner today, [V.P.] was about 50ft away from me and began engaging with me in a game that I’ve taught class before. I engaged back, as I normally would, as if none of this was still going on (and per my objections), and we did it a couple times, then as the class caught up, they interacted as well. Just natural, figured I would give you a heads up.

38. On June 7, the last day of school, Cremers noticed after morning recess that V.P. had a can of soda that she recognized as the same type of soda respondent had given his students the previous day during an activity on the school yard. Cremers asked V.P. about the soda and he told her that a student from respondent’s class had given it to him and told him it was from respondent.

Cremers observed that V.P. looked nervous, although he told her that he was “okay.” Cremers took the soda because she thought it was making V.P. uncomfortable to have it. She notified Stephan about her concern that respondent had made indirect contact with V.P. by sending a student to deliver the soda to him.

39. On June 23, 2023, Cremers wrote a complaint to the Board about her concerns about respondent. She described the incidents with V.P., and expressed her fear that respondent will continue to harm children emotionally. Cremers sent this

letter despite being afraid of respondent and even though she was moving to a different school site the following school year.

REPRIMAND

40. On June 7, 2023, Stephan met with respondent, a union representative, and Rubalcaba and delivered to respondent a letter of reprimand stating that respondent's actions relating to V.P.'s parents' concerns and Stephan's attempts to reach a resolution with them did not align with the District's mission. Stephan identified the following inappropriate conduct in the letter of reprimand:

Respondent expected V.P. to attend a discussion with V.P.'s parents regarding his mental health connected to respondent's discipline and their allegations that respondent engaged in bullying, abuse, and/or harassment towards V.P.

Respondent engaged in bullying and/or harassing, behaviors towards V.P., including when he continued speaking about V.P. in a negative manner and when he addressed him in another teacher's classroom, in front of the other teacher's class, telling V.P. that he did not know he was going to be removed from his class, that he wished he would stay in your class, and that he believed in him.

Respondent made negative and/or shameful comments towards students or had students make negative and/or shameful comments towards other students on numerous occasions, including ranking students and having students

publicly rank or characterize other students based on reliability or honesty.

Respondent inappropriately sent an e-mail to the parents of two different students' parents containing a description of the students' behaviors and relevant consequences, thereby revealing confidential information pertaining to the students.

Respondent consistently assigned or recommended consequences that did not align with District policies or practices, such as assigning or recommending the loss of recess or part or all of lunch play time for two weeks, and recommending that a child be excluded from a scheduled, educational overnight field trip.

Respondent repeatedly ignored or disregarded Stephan's requests and directives.

Respondent was dishonest in emails to other staff members.

41. Respondent was advised that further conduct placing students or other teachers in mental distress would not be tolerated. He was directed to have no contact with V.P. and to follow school policies and discipline matrixes.

42. On June 21, 2023, respondent sent an 11-page document in response to the reprimand to the District's Human Resources department. He wrote that it was his understanding that "the contents and filing of the letter of reprimand" were "unlawful."

Respondent stated that a portion of the document titled "Letter to Agencies" would be sent to "certain governmental agencies under protection as a whistleblower." He also wrote that, other than the directives in the "honesty" section of the reprimand, the directives in the letter of reprimand were "new and/or unreasonable, unlawful, unsafe, unhealthy, unethical and unprofessional."

In the "Letter to Agencies" section, respondent accused Stephan of repeated issuance of illegal orders, improper governmental activities, retaliation, fraud, negligence, malice, corruption, coercion, bullying, creating and maintaining a hostile work environment, cyberbullying, harassment, and willful omission to perform duty.

2023-2024 School Year

AUGUST 22, 2023, DISCIPLINE MATRIX MEETING

43. Pursuant to a Memorandum of Understanding (MOU) between the District and the union representing the District's elementary school teachers, the staff at every school site must meet twice a year, in late spring and in early fall, to discuss the District's student discipline policy.

44. The District has promulgated a discipline matrix. Each school site develops an individualized matrix, consistent with the districtwide matrix.

45. Although some witnesses testified that respondent attended a meeting on May 30, 2023, at which the discipline policy was discussed, the evidence established that he was not present at that meeting. This conflicting testimony did not render other testimony of the witnesses less credible.

46. Respondent was present at the meeting to discuss the discipline policy on August 22, 2023. Respondent objected to the discussion taking place, claiming that it was unlawful, unhealthy, new, unsafe, and unreasonable.

47. At this meeting, respondent was argumentative and interrupted others. He insisted that it was his right to discipline his students as he sees fit and appeared unwilling to adhere to the matrix. He was loud, accusatory, and demeaning. Respondent's behavior at this meeting was consistent with his behavior at previous staff meetings.

48. When some individuals expressed their view that respondent's discipline methods, including making students write sentences, were punitive, ineffective, and fell outside the discipline matrix, respondent became upset. Some expressed concern that writing sentences could be counterproductive for some students, including those who are neurodivergent, and respondent was dismissive and unwilling to listen to this perspective.

49. First grade teacher Elizabeth Martin was troubled by respondent's statements at the meeting. She was particularly concerned for two reasons. First, there was a tentative plan for Martin to chaperone a field trip with respondent's class and for respondent, who was not planning on attending the field trip, to teach Martin's class while she was out. Martin did not want respondent teaching her students after what she heard him express at the meeting. Second, Martin's daughter was a third grade student at the time of the meeting, and Martin was concerned that her daughter could be placed in respondent's class the following year. She believed that respondent's philosophy and discipline practices would be damaging to her daughter.

50. A few days after the meeting, respondent sent an email to all Brewer Island teachers. He wrote that he objected to Stephan "facilitating or permitting discourse as done in the 8-22-23 and 5-30-23 meetings is new, unreasonable, unlawful, unsafe, unhealthy and/or places new and unreasonable burdens upon staff, including myself." He stated that he intended to report Stephan's "ongoing actions." Respondent then included a summary of some of the discussions from the meeting, identifying teachers as "T1" through "T7" and attributing different statements to them. A teacher responded to this email stating that she believed she was "T2" referred to by respondent and that he had misrepresented her statements at the meeting. Two other teachers who were both union representatives responded that meetings to discuss student discipline are required by the MOU.

51. On August 29, 2023, Martin filed a complaint against respondent, stating that respondent created an uncomfortable and hostile working environment and describing his behavior at the staff meeting. She expressed her belief that respondent's behavior was having a negative impact on school staff and students.

STUDENT V.

52. Student V. was assigned to respondent's fourth grade classroom for the 2023-2024 school year. V. receives special education services pursuant to an Individualized Education Program (IEP). V. has a history of trauma and severe emotional needs. Brewer Island implemented a therapeutic or "TLC" classroom during the 2023-2024 school year. V. and other students were allowed access to this room if they needed behavioral or academic support.

53. On August 28, 2023, V. was dysregulated and elected to stay in the TLC room instead of returning to respondent's classroom after lunch. Special education

teacher Janella Cambaya and paraeducator Amy Chivers were in the TLC room calming V. and encouraging V. to return to class. Chivers went to respondent's classroom to request V.'s classwork so that V. could work on it in the TLC room, but respondent would not give it to her and told her V. had to return to class. He said he would be documenting their discussion, and then made a statement to Chivers that she did not understand, to the effect of "we wouldn't need to document if we lived in the forest." Chivers had previously been uncomfortable with respondent. She observed him giving below-grade level work to V. that was different from the work being done by the other students. She had also observed a classroom environment where students pressured each other and managed each other's behavior.

54. Chivers returned to the TLC room. A short while later, V. had calmed down and was preparing to return to respondent's room. V. was sitting on a bean bag chair and was about to put her shoes on when respondent came to the TLC room. Respondent asked V. whether her parents pick her up if she starts crying in a store and she said "No."

55. Respondent then stated that if V. did not get up in a count of four, he would pick her up and bring her to the office. He told Cambaya and Chivers that he knew his rights as a teacher and that he had a right to pick up V. He stated that he had been trained on how to carry students. He started to count down from four in a loud voice.

56. Chivers and Cambaya believed that respondent was going to pick up V., but respondent left the TLC room and did not pick up or touch V.

57. V. returned to respondent's class that afternoon, but after the incident, Chivers and Cambaya observed V. being increasingly uncooperative and resistant to

returning to class, even after she was assigned to another teacher for general education.

58. Chivers and Cambaya were troubled by respondent's statements about picking up V., both because it was upsetting to V. and because they thought his statement that he had a right to pick her up was incorrect and contrary to District policy. They reported the incident to Kaci St. John, Assistant Director of Special Education, who in turn reported it to Cosmos. St. John obtained statements from Chivers and Cambaya and talked to V. V. confirmed to St. John that respondent said he was going to pick her up and carry her to the office.

59. St. John explained at hearing that respondent was not authorized by District policy to pick up V. and that doing so would have violated V.'s rights. The District follows a "hands off" philosophy regarding touching students. Staff are not to touch students unless there is imminent danger of harm to the student or others. The District does not permit touching a student merely because the student is dysregulated or uncooperative. Only seven staff members, not including respondent, have been trained in physical holds to be used in limited circumstances.

60. St. John reported that the incident had a negative impact on V., who was new to this school. V. was allowed to spend time in the TLC room when needed and it was not a violation of her IEP for her to be there instead of in her general education classroom.

61. Shortly before noon on August 29, 2023, respondent was called to meet with Stephan, Cosmos, and a union representative. Cosmos directed respondent not to touch V. Respondent stated that he disagreed but understood.

62. Respondent was placed on paid administrative towards the end of the day on August 29, 2023.

Investigation

63. The District hired attorney J. Kayleigh Chevrier to investigate the complaint submitted by Cremers and the complaint submitted by respondent. Tavares notified respondent in writing on June 30, 2023, that Chevrier would be investigating both the complaint he submitted (Finding 42) and the complaint submitted by Cremers against him (Finding 39).

64. Chevrier began her investigation that summer. The scope of Chevrier's investigation expanded to include the complaint filed by Martin (Finding 51). Tavares notified respondent by letter dated September 6, 2023, that Chevrier would also be investigating Martin's complaint.

65. Chevrier conducted her investigation in accordance with District policy. She interviewed numerous witnesses including respondent. She collected documents from the District and the witnesses and received and reviewed written submissions from respondent.

66. Respondent did not acknowledge that any of his behavior was inappropriate. He defended his practices of making students write sentences 100 or more times, withholding field trips, and having students rank each other based on honesty and trustworthiness.

67. Respondent admitted that he refused to answer V.P.'s parents' questions without V.P. present. He defended bringing his class to Cremers's classroom to communicate with V.P. He asserted that he had a right to communicate with V.P.

despite Stephan's directive not to communicate with him after he had been removed from respondent's class. Regarding the incident with the soda, respondent told Chevrier that one of his students suggested giving the soda to V.P., and that he had told the student it was okay, as long as it came from the student and not respondent. Respondent claimed that it was his students' idea to circulate a petition and go talk to him in Cremers's classroom. Chevrier found these claims not credible.

68. Respondent denied threatening to pick up V. but stated that it was within his rights and training to do so.

69. At least four witnesses told Chevrier that respondent's conduct at the August 22, 2023, staff meeting made them uncomfortable. Respondent denied creating a hostile work environment and blamed Stephan.

70. Respondent did not articulate the basis of his assertions of unlawful behavior by Stephan and provided no specific evidence other than his own assertions.

71. Chevrier prepared a report with her determinations regarding the three complaints, which was signed by Tavares and mailed to respondent on October 9, 2023.

72. Chevrier determined that none of respondent's allegations against Stephan were substantiated. No other teacher corroborated respondent's assertions that Stephan behaved unlawfully, interfered with teachers' rights and duties, bullied or harassed respondent, or created a hostile work environment.

73. Chevrier determined that most of the allegations in Cremers's and Martin's complaints were substantiated. This included a finding that respondent

engaged in practices that did not align with the District's educational philosophy and values.

74. Chevrier concluded that respondent's behavior made other staff uncomfortable but did not rise to the level of creating a hostile work environment.

Testimony of Respondent's Colleagues Regarding Respondent's Negative Impact on Students and Staff

75. The District's witnesses all testified persuasively about respondent's negative impact on students and staff.

76. Tavares believes that respondent's conduct was damaging to students and terrifying to other staff members. Based on her interactions with respondent, Tavares does not believe that he would follow District policies if he were retained. She found him unwilling to change his behavior to conform to District policy. She believes he does not have the personality to teach. She believes his continued employment with the District would have a significant negative impact on students and staff.

77. Cosmos views respondent's behavior as unprofessional, unlawful, and harmful to children. He believes respondent would not follow District policies and state law if reinstated. He believes that reinstating respondent would negatively impact students' safety and social and emotional wellbeing.

78. Stephan stated that it was "questionable" whether respondent would follow District policy in the future. She agreed that respondent's behavior had a negative impact on students and staff, especially Cremers.

79. Chivers stated that she would not feel comfortable working with respondent based on her interactions with him concerning V. and what she observed

in his classroom. Cambaya also stated that she would not be comfortable working with respondent.

80. Martin testified that respondent's behavior had a negative impact on her and other staff and that meetings have become more professional, respectful, and positive without his presence. She also does not believe respondent would follow District policy or management directives should he return to work at Brewer Island.

81. Teacher and union representative Lisa Fahey believes that respondent would not change his behavior should he return to work, would not follow District guidelines on student discipline or management directives, and would not collaborate with staff in discussing the discipline matrix. Fahey reported that respondent's confrontational and intimidating behavior during staff meetings had a chilling effect. Fahey reported that respondent frequently claimed that policies or directives were unlawful without explaining why. Fahey was also troubled by her observation that respondent's students policed each other's behavior and enforced respondent's discipline on each other.

82. Cremers also stated that she would not feel comfortable working with respondent again, describing him as "volatile." Based on his past behavior, she does not believe respondent would follow District policy.

83. Cremers and Martin both believe respondent's behavior had a negative impact on V.P. Cremers observed V.P.'s discomfort when respondent brought his class to her classroom to communicate with him and when he was given the soda. Martin was familiar with V.P., who had been in her class in first grade. She noticed him become more withdrawn which she believes was due to his experience in respondent's class.

84. St. John, Chivers, and Cambaya all believe respondent's behavior had a negative impact on V. based on their observations of her behavior in the aftermath of the August 29, 2023 incident.

Violations of Board Policies and Directives

85. Board Policy 4119.21(Professional Standards) states:

The Board of Trustees expects district employees to maintain the highest ethical standards, behave professionally, follow district policies and regulations, abide by state and federal laws, and exercise good judgment when interacting with students and other members of the school community. Employees shall engage in conduct that enhances the integrity of the district, advances the goals of the district's educational programs, and contributes to a positive school climate. . . Each employee is expected to acquire the knowledge and skills necessary to fulfill his/her responsibilities and to contribute to the learning and achievement of district students.

[. . .]

Inappropriate employee conduct includes, but is not limited to:

1. Engaging in any conduct that endangers students, staff, or others, including, but not limited to, physical violence, threats of violence

2. Engaging in harassing or discriminatory behavior towards students, parents/guardians, staff, or community members . . .

[. . .]

4. Engaging in inappropriate socialization or fraternization with a student . . .

[. . .]

6. Using profane, obscene, or abusive language against students, parents/guardians, staff, or community members

[. . .]

9. Being dishonest with students, parents/guardians, staff, or members of the public . . .

10. Divulging confidential information about students, district employees, or district operations to persons or entities not authorized to receive information

86. Respondent violated this policy by bringing his entire class to Cremers's classroom to communicate with V.P. after he had been removed from respondent's class (Finding 31); interacting with V.P. after being directed not to have contact with him (Finding 38); stating that he would pick up and carry V. to the office (Finding 55); discussing V.P.'s transfer to Cremers's class with his students after having been directed not to discuss it (Findings 30, 33.); and sharing student disciplinary information with parents of another student (Finding 17).

87. Board Policy 4119.21 also includes a Code of Ethics of the Education Professions, which states, in part:

The educator, believing in the worth and dignity of each human being, recognizes the supreme importance of the pursuit of truth, devotion to excellence, and the nurturing of democratic principles. Essential to these goals is the protection of freedom to learn and to teach and the guarantee of equal educational opportunity for all. The educator accepts the responsibility to adhere to the highest ethical standards.

The educator recognizes the magnitude of the responsibility inherent in the teaching process. The desire for the respect and confidence of one's colleagues, of students, of parents, and of the members of the community provides the incentive to attain and maintain the highest possible degree of ethical conduct. The Code of Ethics of the Education Profession indicates the aspiration of all educators and provides standards by which to judge conduct.

Principle I. Commitment to the Student

The educator strives to help each student realize his/her potential as a worthy and effective member of society. The educator therefore works to stimulate the spirit of inquiry,

the acquisition of knowledge and understanding, and the thoughtful formulation of worthy goals.

In fulfillment of the obligation to the student, the educator:

[. . .]

4. Shall make reasonable effort to protect the student from conditions harmful to learning or to health and safety

5. Shall not intentionally expose the student to embarrassment or disparagement

[. . .]

8. Shall not disclose information in the course of professional service unless disclosure serves a compelling professional purpose or is required by law

88. Respondent violated the Code of Ethics by embarrassing and disparaging students and failing to protect students from conditions harmful to learning or to health and safety (Findings 14, 18, 20, 21, 27, 30-33, 38, 54, 55); and by disclosing confidential information to parents and other students (Findings 17, 33).

89. Board Policy 0100 (Philosophy) provides that it is the philosophy of the District that “[h]ighly skilled and innovative staff, teachers, and administrators support students to achieve academic success and emotional well-being” and that a “safe, nurturing environment and positive school climate are necessary for learning, academic achievement, and student development.”

90. Respondent violated Board Policy 0100 by failing to support students' emotional well-being and failing to provide a safe, nurturing environment and positive school climate (Findings 14, 16-18, 21, 23, 27, 31, 38, 53, 55).

91. Board Policy 5000 (Concepts and Roles) sets forth the Board's intention to "make every effort to maintain a safe, positive school environment and student services that promote student welfare and academic achievement."

92. Respondent violated Board Policy 5000 by creating a harmful negative environment for his students. (Findings 14, 16, 17, 21, 22, 27, 30, 31, 38, 53, 55.)

93. Administrative Regulation 5131.41 (Use of Seclusion and Restraint) provides:

District staff shall enforce standards of appropriate student conduct in order to provide a safe and secure environment for students and staff on campus, but are prohibited from using seclusion and behavioral restraint to control student behavior except to the limited extent authorized by law.

Behavioral restraint includes mechanical restraint or physical restraint used as an intervention when a student presents an immediate danger to self or to others.

[. . .]

Seclusion and behavioral restraint of students shall not be used in any form as a means of coercion, discipline, convenience, or retaliation. (Education Code 49005.8).

94. Respondent violated Administrative Regulation 5131.41 by stating that he would pick up V. as a consequence for her not returning to his classroom, and by asserting that he has a right to do so. (Finding 55, 68.)

95. Board Policy 6141 (Curriculum Development And Evaluation) provides that the District's curriculum "shall be aligned with the district's vision and goals for student learning, Board policies, academic content standards, state curriculum frameworks, state and district assessments, graduation requirements, school and district improvement plans, and, when necessary, related legal requirements."

96. Respondent violated Board Policy 6141 by giving his students assignments that fell outside the curriculum and were not in alignment with the District's vision and goals for student learning. (Findings 14, 16, 18, 21, 27, 30.)

97. Board Policy 5144 (Discipline) provides that the Board is "committed to providing a safe, supportive, and positive school environment which is conducive to student learning and achievement and desires to prepare students for responsible citizenship by fostering self-discipline and personal responsibility." It further provides that:

At all times, the safety of students and staff and the maintenance of an orderly school environment shall be priorities in determining appropriate discipline. When misconduct occurs, staff shall attempt to identify the causes of the student's behavior and implement appropriate discipline. When choosing between different disciplinary strategies, staff shall consider the effect of each option on the student's health, well-being, and opportunity to learn.

Staff are directed to use, to the extent possible, “disciplinary strategies that keep students in school and participating in the instructional program.” Examples of disciplinary strategies are provided in Board Policy 5144, including:

- Discussion or conference between school staff and the student and parents/guardians
- Participation in a restorative justice program
- A positive behavior support approach with tiered interventions that occur during the school day on campus
- Recess restriction as provided in the section titled “Recess Restriction”
- In accordance with Board policy and administrative regulation, restriction or disqualification from participation in extracurricular activities

The “Recess Restriction” section of the Discipline policy provides:

Teachers may restrict a student’s recess time only when they believe that this action is the most effective way to bring about improved behavior. When recess restriction involves the withholding of physical activity from a student, teachers shall try other disciplinary measures before imposing the restriction. Recess restriction shall be subject to the following conditions:

1. The student shall be given adequate time to use the restroom and get a drink or eat lunch, as appropriate.

2. The student shall remain under a certificated employee's supervision during the period of restriction.

3. The student's teacher shall inform the principal of any recess restrictions imposed.

98. Respondent's disciplinary methods violated Board Policy 5144. (Findings 14, 17, 18.)

99. Respondent violated Stephan's directives by refusing to answer V.P.'s parents' concerns, interacting with V.P. after being directed to have no contact, refusing her directive to stop having students rank each other, and talking about V.P. with his class after he had been transferred. (Findings 23, 26, 30, 37, 38.)

LEGAL CONCLUSIONS

Burden and Standard of Proof

1. In teacher dismissal proceedings, the school district ordinarily bears the burden of proving the facts and circumstances constituting cause for dismissal by a preponderance of the evidence. (*Gardner v. Commission on Professional Competence* (1985) 164 Cal.App.3d 1035, 1038-1039.)

2. Respondent contends that he is entitled to a clear and convincing standard of proof, relying on Education Code section 44114. Pursuant to section 44114, subdivision (e), a teacher who has been retaliated against for statutorily protected "whistleblowing" may assert that as an affirmative defense in an administrative hearing regarding adverse action by an employing school district. Section 44114, subdivision (e), places on the teacher the initial burden of proving "by a

preponderance of the evidence that an activity protected by this article was a contributing factor in the alleged retaliation.” To constitute an activity protected under section 44114, the teacher must demonstrate that he or she had a reasonable and good faith belief that an improper governmental activity occurred. A “protected disclosure” is defined by section 44112, subdivision (e), as “a good faith communication that discloses or demonstrates an intention to disclose” an “improper governmental activity,” which section 44112, subdivision (c), defines as an “activity [that] violates a state or federal law or regulation,” or “is economically wasteful or involves gross misconduct, incompetency, or inefficiency.”

If the teacher meets his or her burden of establishing the elements described above, the burden shifts to the District to demonstrate by clear and convincing evidence that the adverse action would have occurred for legitimate, independent reasons, even if the teacher had not engaged in the protected activity. (Ed. Code, § 44114, subd. (e).)

3. The District contends that: 1) this provision of the Education Code does not apply in teacher dismissal proceedings; 2) even if it does apply, respondent never filed any report of unlawful activity that would trigger application of this provision; and 3) the District would be prejudiced by application of this provision because respondent did not assert it until hearing. The District further contends that even if a clear and convincing standard of proof applies in this proceedings, it has met that higher burden.

4. The District’s contentions are persuasive. The Commission doubts that the burden-shifting provision of section 44114 applies to teacher dismissal proceedings. Assuming it does apply, respondent’s baseless complaints of unlawful activity were not made in good faith, and respondent has not met his burden of

establishing that any protected activity on his part was a contributing factor in the District's decision to dismiss him from employment. Respondent has not established that the burden-shifting and heightened standard of proof set forth in Education Code section 44114 apply to this case.

Alleged Due Process Violations

5. Prior, during, and at the conclusion of the hearing, respondent moved to dismiss this action based on alleged violations of his right to due process. Respondent has not established that his rights have been violated. Respondent was notified prior to the District's investigation and was provided the opportunity to present evidence on his behalf. Respondent was then afforded the opportunity to respond to the allegations prior to the presentation of the Statement of Charges to the Board, and did so. The errors in the original Statement of Charges were not substantive or prejudicial, and respondent's rights were not violated by the issuance of the Revised Statement of Charges without additional Board approval. Respondent did not establish that the District violated his rights by unreasonably delaying issuing the Statement of Charges, which was approved by the Board approximately eight months after respondent was placed on administrative leave.

Finally, respondent's right to due process has been honored through this administrative hearing by a Commission of three individuals with no prior relationship or involvement with the District or any of the District's witnesses.

Summary of Respondent's Contentions

6. Respondent contends that he cannot be found to have violated or refused to obey directives or to have been insubordinate because he raised objections to the directives as unlawful. This contention lacks merit; respondent's numerous,

baseless objections to lawful directives did not relieve him of his obligation to follow District policy and management directives.

7. Respondent contends that he is being disciplined for protected activity, including expressing his views at the staff meeting. This contention lacks merit because respondent is being disciplined for the aggressive, defiant manner in which he expressed his views and for his refusal to follow District policy, not for engaging in protected activity.

8. Respondent asserts that there was no evidence that V.P. was upset by anything respondent did. This assertion was contradicted by the evidence, which showed that respondent's conduct negatively impacted V.P.

9. Respondent asserts that the District cannot discipline him for disagreeing with the directive not to touch V. because the directive was "unlawful." Respondent appears to argue that the directive was unlawful because it did not include an exception for him to touch the student if she was in imminent danger. Respondent's contention is rejected because the District's dismissal is based on respondent's persistent violation of and refusal to comply with numerous other lawful policies and directives, and his misstatements about his right to touch students. It is not premised on respondent violating Cosmos's directive.

10. Respondent contends that the District's allegations and evidence at hearing are based on biased witnesses. This contention is rejected. Respondent had the opportunity to cross-examine witnesses to expose any bias. The Commission weighed the credibility and considered the motives of the witnesses in making the Factual Findings.

11. Respondent contends that his behavior was professional and his motives were praiseworthy. These contentions were refuted by the evidence.

Causes for Dismissal

12. The District alleges two statutory causes for respondent's dismissal: evident unfitness for service (Ed. Code, § 44932, subd. (a)(6)), and persistent violation of, or refusal to obey, reasonable regulations prescribed by the Board (*id.*, subd. (a)(8)).

PERSISTENT VIOLATION OF REGULATIONS

13. As set forth in Factual Findings 85 through 99, respondent engaged in persistent violations of Board Policies, Administrative Regulations, and directives from principal Stephan. Cause for dismissal for persistent violation was established.

EVIDENT UNFITNESS FOR SERVICE

14. The Education Code authorizes a school district to dismiss a permanent certificated employee who is "clearly not fit, not adapted to, or unsuitable for teaching, ordinarily by reason of temperamental defects or inadequacies." (*Woodland Joint Unified Sch. Dist. v. Commission on Professional Competence* (1992) 2 Cal.App.4th 1429, 1444.) Such evident unfitness may exist, for example, when a teacher is repeatedly and incurably insubordinate, or is incapable of maintaining cordial, cooperative relationships with colleagues. (*Id.*, at pp. 1436-1440.)

15. The Commission must evaluate a teacher's unfitness for service considering several criteria, including likelihood and degree of adverse impact on students and fellow teachers, proximity or remoteness in time of the relevant conduct, extenuating or aggravating circumstances, praiseworthiness or blameworthiness of the teacher's motives, the likelihood of recurrence, and the extent to which disciplinary

action might inflict an adverse impact or chilling effect upon the constitutional rights of the teacher. (*Morrison v. State Board of Education* (1969) 1 Cal.3d 214, 229-230.) In addition, the Commission must evaluate whether the conduct demonstrating unfitness "is caused by a defect in temperament." (*Woodland, supra*, 2 Cal.App.4th at p. 1445.) Respondent's actions of sharing confidential student information; asserting that he has a right to pick up students; using intimidation and bullying tactics; making negative statements about students to other students; refusing to consider other teachers' perspectives at staff meetings; failing to follow District values; failing to take accountability for his misconduct; failing to meet with V.P.'s parents without V.P. present; failing to answer V.P.'s parents' questions; interacting with V.P. after he was removed from respondent's class; threatening to pick up V.; using disciplinary measures that do not follow the District's discipline matrix; and encouraging students to make negative statements about other students; together and separately establish respondent's evident unfitness for service.

Adverse Impact on Students and Fellow Teachers

16. Respondent's conduct had a significant adverse impact on students and fellow teachers. There was ample evidence that V.P. suffered as a result of respondent's excessive discipline, to the point that he was moved to another classroom with only eight days left in the school year. V.P. and the other student were negatively impacted by respondent's attempt to exclude them from the field trip. Following V.P.'s transfer to another class, respondent continued to inflict harm on V.P. by discussing the move with other students and continuing to communicate with him, even after being directed to have no contact. Respondent's students were harmed by the ranking activity and by being publicly shamed. Cremers was negatively impacted by respondent's behavior on June 5, when he interrupted her class to communicate

with V.P. Respondent's students and Cremers's students were also negatively impacted by this incident. V. also suffered as a result of respondent's actions, as did the two staff members who witnessed respondent threaten to pick her up. The negative impact of respondent's demeaning and humiliating behavior may persist over time.

Fellow teachers at Brewer Island were negatively impacted by respondent's disruptive and demeaning behavior at staff meetings and in email communications.

Proximity or Remoteness in Time

17. The bulk of the allegations transpired within the last two years and are proximate in time.

Extenuating or Aggravating Circumstances

18. There are no extenuating circumstances. Aggravating circumstances include respondent's protracted negative interactions with V.P.; his inappropriate attempt to discuss V.P.'s parents' concerns in front of his entire class; his apparent retaliation against V.P. in the form of lower grades in social responsibility; his interference with V. receiving special education services in the TLC classroom; his interruption of class time by bringing his class to Cremers's class; and his threatening statement to V., a child with a history of trauma.

Respondent's Motives

19. Respondent's motives are blameworthy and not praiseworthy. He accepted no responsibility for his actions. His refusal to answer V.P.'s parents' concerns was unjustified. He made repeated baseless allegations of unlawful activity in bad faith and in an apparent attempt to justify his misconduct and avoid compliance with lawful

directives. He is indifferent to the effect his actions have had on students and other teachers.

Likelihood of Recurrence

20. Overwhelming evidence established that if the District retained respondent as a teacher, respondent would continue to violate District policy and to resist any efforts by District administrators to correct his discipline methods and change his behavior. Respondent has a history of rejecting directives. Respondent is steadfast in his views that his behavior and teaching approach are professional and that any criticism of him is unlawful. Respondent cannot be trusted to abide by Board policy or state law, especially involving the use of appropriate, effective discipline methods.

Chilling Effect

21. The evidence did not establish that any constitutional right will be adversely impacted by disciplinary action against respondent. Respondent's allegations of unlawful activity were unsubstantiated and had no role in the District's decision. Respondent is not being disciplined for exercising any constitutional right.

Determination

22. Although the Commission has found cause to dismiss respondent, the Commission has discretion to decline to dismiss him. (*Fontana Unified Sch. Dist. v. Burman* (1988) 45 Cal.3d 208, 222.)

23. The Commission determined that respondent is not temperamentally suited to teach, as evidenced by his demeaning conduct towards students and colleagues, his protracted harassing behavior towards V.P., his threat to pick up a

student, his refusal to follow Board policy, and his repeated, baseless accusations of unlawful actions by others. Respondent disingenuously denied refusing to follow laws and policies and depicted his conduct as justified noncompliance with unlawful directives.

Respondent's attitude towards this proceeding provided further evidence of his unfitness to teach. Respondent refused to meaningfully participate at deposition and refused to respond to questions at hearing. He persisted in stating that he was cooperating when he was not. Respondent engaged in serious misconduct with significant negative impact on students and fellow teachers. He expressed no remorse and accepted no responsibility for his actions. It is overwhelmingly likely that respondent would continue to engage in similar misconduct if returned to the classroom. Dismissal from his position is warranted.

ORDER

Respondent Bron Hantzis is dismissed from his position as a permanent certificated employee of the San Mateo-Foster City School District due to his persistent violation of and refusal to obey reasonable Board policies and directives and his evident unfitness for service.

DATE: 02/03/2025

Karen Reichmann

KAREN REICHMANN

Commission Member

Administrative Law Judge

Office of Administrative Hearings

DATE: 01/31/2025

Laura Andrews

Laura Andrews (Jan 31, 2025 09:38 PST)

LAURA ANDREWS

Commission Member

DATE: 01/31/2025

Carissa Carrera

Carissa Carrera (Jan 31, 2025 16:39 PST)

CARISSA CARRERA

Commission Member